

COUR PERMANENTE DE JUSTICE INTERNATIONALE

SÉRIE A/B

ARRÊTS, ORDONNANCES ET AVIS CONSULTATIFS

FASCICULE N° 54

AFFAIRE RELATIVE A L'ADMINISTRATION
DU PRINCE VON PLESS
(MESURES CONSERVATOIRES)

ORDONNANCE DU 11 MAI 1933

XXVIII^m SESSION

1933

XXVIIIth SESSION

ORDER OF MAY 11th, 1933

PERMANENT COURT OF INTERNATIONAL JUSTICE

SERIES A./B.

JUDGMENTS, ORDERS AND ADVISORY OPINIONS

FASCICULE No. 54

CASE CONCERNING THE ADMINISTRATION
OF THE PRINCE VON PLESS
(INTERIM MEASURES OF PROTECTION)

LEYDE
SOCIÉTÉ D'ÉDITIONS
A. W. SIJTHOFF

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PERMANENT COURT OF INTERNATIONAL JUSTICE

ORDER MADE ON MAY 11th, 1933.

1933.
May 11th.
General List:
Nos. 49 and 55.

TWENTY-EIGHTH (EXTRAORDINARY) SESSION.

May 11th, 1933.

CASE CONCERNING THE ADMINISTRATION
OF THE PRINCE VON PLESS.

(APPLICATION FOR THE INDICATION
OF INTERIM MEASURES OF PROTECTION.)

Present: MM. ADATCI, *President*; GUERRERO, *Vice-President*;
Baron ROLIN-JAEQUEMYS, Count ROSTWOROWSKI,
MM. FROMAGEOT, ANZILOTTI, URRUTIA, Sir CECIL
HURST, MM. SCHÜCKING, NEGULESCO, Jhr. VAN
EYSINGA, M. WANG, *Judges*.

The Permanent Court of International Justice,

composed as above,
after deliberation,

Makes the following Order:

Having regard to Articles 41 and 48 of the Statute,
Having regard to Articles 57 and 61 of the Rules of Court,
Having regard to the Application of May 18th, 1932, trans-
mitted to it on the same date, whereby the Government of
the German Reich brought before the Court a suit against
the Government of the Republic of Poland, founded on an
alleged violation by the Polish Government of certain obliga-
tions incumbent upon that Government under the Geneva
Convention of May 15th, 1922, concerning Upper Silesia, in

regard to the Administration of the Prince von Pless, a Polish national belonging to the German minority in Polish Upper Silesia ;

Having regard to the document filed with the Registry on October 8th, 1932, accompanied by a "Preliminary Counter-Case", whereby the Government of the Republic of Poland raised, under Article 38 of the Rules of Court, a preliminary objection to the German Government's Application, submitting that the Court should "declare the German Government's Application inadmissible" ;

Having regard to the Order of February 4th, 1933, whereby the Court, adjudicating upon the preliminary objection raised by the Polish Government, decided that this objection should be joined to the merits of the suit and that the subsequent time-limits for the filing of documents of the written proceedings upon the merits should be so fixed that, subject to certain conditions, the case would be ready for hearing as from October 15th, 1933 ;

Whereas, by a document dated May 2nd, 1933, filed in the Registry of the Court on May 3rd, 1933, the Agent for the German Government before the Court requested the latter "to indicate to the Polish Government, as an interim measure of protection, pending the delivery of judgment upon the Application of May 18th, 1932, that it should abstain from any measure of constraint in respect of the property of the Prince von Pless, on account of income-tax" ;

Whereas, in support of this Application, the aforesaid Agent alleged :

"that the Taxation Office at Pszczyna, on April 20th, 1933, served on the Prince von Pless two summonses for the payment within fifteen days of the sum of 4,397,313.40 zlotys + 409,495.15 zlotys + 439,731.34 zlotys, making in all 5,246,539.89 zlotys, with interest on arrears charged as from June 1st, 1930, on account of income-tax for the fiscal years 1927, 1928 and 1929, and a sum of 1,582,914.25 zlotys + 110,284.16 zlotys + 158,291.43 zlotys, making in all 1,851,489.84 zlotys, with interest on arrears charged as from February 17th, 1931, on account of income-tax for the fiscal year 1930 ;

that these summonses to pay are accompanied by a threat that in the event of the whole sum not being paid within the above-mentioned time, measures of constraint will be applied ;

that the Taxation Office at Pszczyna on April 20th, 1933, decreed the attachment of the claim of the Prince von Pless against the administration of the State Railways in respect of deliveries of coal up to an amount of 1,841,759.84 zlotys ;

that the carrying into effect of the above-mentioned measures of constraint would irremediably prejudice the rights and interests forming the subject of the dispute" ;

Whereas, on receipt of this Application, the President of the Court—the latter not being in session—in convening, on May 5th, 1933, an extraordinary session of the Court for May 10th, 1933, pursuant to Article 23 of the Statute and Article 57 of the Rules of Court, also provided for a hearing on May 11th, 1933, in order to give the Agents of the two Parties an opportunity, should they so desire, to present their observations upon the Application of the German Government for the indication of interim measures of protection;

Whereas on May 6th, 1933, the German Government's Agent announced that he desired to avail himself of the opportunity thus afforded him;

Whereas, on the other hand, on May 8th, 1933, the Polish Government, on being duly informed of the Application of the German Government of May 2nd, 1933, and of the decisions on the subject taken on May 5th by the President of the Court, transmitted to the Court, through its Legation at The Hague and through its Agent before the Court, declarations to the following effect: that the summonses for payment (warrant for execution) in respect of the payment of the income-tax of the Prince von Pless for the years 1927-1930 had been sent to the Prince by oversight, the newly-appointed head of the department dealing with measures of constraint (of the Taxation Office) having been unacquainted with the documents relating to the matter; that the higher authorities, having learnt that measures of constraint had been taken in respect of the Prince von Pless, the Government of the Republic of Poland had annulled the warrant above mentioned; that the said Government maintained its declaration to the effect that it will suspend measures of constraint in respect of the income-tax of the Prince von Pless for the years 1925-1930, and will not collect these taxes, until the Court has finally decided the dispute now pending before it;

Whereas, at the same time, the Agent of the Polish Government announced that he waived the right to a hearing afforded him by Article 57, paragraph 3, of the Rules of Court;

Whereas, on being duly informed of the declaration to the above effect transmitted to the Court by the Polish Legation at The Hague, the Agent of the German Government, with reference to this declaration, has informed the Court, through the German Legation at The Hague, that the German Government is in agreement with the course adopted by the Polish Government for the settlement of the question which formed the subject of the German Government's Application for the indication of interim measures; that that Government notifies the Court of this agreement; and that it requests it, applying by analogy Article 61, paragraph 1, of the Rules of Court, to take note of the agreement reached;

Whereas, in consequence of the annulment, on the ground that an administrative error had occurred, of the measures of constraint (warrant for execution of April 20th, 1933) taken against the Prince von Pless in respect of his income-tax for the years 1927 to 1930, the grounds for the German Government's Application for the indication of interim measures of protection have ceased to exist;

Whereas, in so far as concerns the income-tax of the Prince von Pless for the years 1925-1930, there is no difference between that which the German Government seeks to obtain according to the submission set forth in the document of May 2nd, 1933, and the intentions of the Polish Government as expressed in the declaration of that Government's Agent dated May 8th, 1933;

Whereas it likewise appears from this declaration and from the declaration of the same date made by the Agent of the German Government that the Parties are agreed in regard to the settlement of the question forming the subject of the latter Government's Application of May 2nd, 1933;

Whereas the request made by Germany in that Application has thus ceased to have any object, and as it is accordingly unnecessary for the Court to consider whether it would have been competent to adjudicate upon it and whether that Application was admissible;

Whereas, furthermore, the present Order must in no way prejudice either the question of the Court's jurisdiction to adjudicate upon the German Government's Application instituting proceedings of May 18th, 1932, or that of the admissibility of that Application;

THE COURT,

(1) notes the fact that the Government of the Republic of Poland has annulled the measures of constraint taken against the Prince von Pless, on April 20th, 1933, by the Taxation Office at Pszczyna;

(2) takes note of the said Government's declaration that it will suspend any measures of constraint against the Prince von Pless in respect of his income-tax for the years 1925 to 1930 and the collection of the taxes due by him for these years, until the Court has finally decided the dispute brought before it by the German Government's Application of May 18th, 1932;

(3) notes the declaration of the Government of the German Reich to the effect that it is in agreement in regard to the settlement of the question which forms the subject of that Government's Application dated May 2nd, 1933;

(4) declares, accordingly, that the request for the indication of interim measures of protection, formulated in the last-mentioned Application of the German Government, has ceased to have any object.

Done in English and French, the French text being authoritative, at the Peace Palace, The Hague, this eleventh day of May, one thousand nine hundred and thirty-three, in three copies, one of which shall be placed in the archives of the Court and the others transmitted to the Government of the German Reich and to the Government of the Republic of Poland respectively.

(Signed) M. ADATCI,
President of the Court.

(Signed) Å. HAMMARSKJÖLD,
Registrar of the Court.